

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH &
BEYOND INC., *Complainant*

DOCKET NO. 24-12

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC
#011982) CONSISTING OF EVERGREEN MARINE CORP.
(TAIWAN) LTD.; EVERGREEN MARINE (UK) LIMITED; ITALIA
MARITTIMA SPA; EVERGREEN MARINE (HONG KONG) LTD.;
AND EVERGREEN MARINE (SINGAPORE) PTE. LTD.,
Respondents.

Served: December 6, 2024

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge.*

ORDER GRANTING JOINT MOTION FOR ENTRY OF PROTECTIVE ORDER

On December 6, 2024, the parties filed a Joint Motion for Entry of Protective Order [Dkt. 27], attaching the proposed protective order. The motion states that “a protective order is necessary and required to enable the parties to fully respond to discovery requests, which may cover information and documents that are confidential, proprietary, and/or commercially sensitive.” Mot. at 1. The motion also states that the parties “jointly drafted and agreed to the terms of the Protective Order....” Id.

The Initial Order in this proceeding states that “[t]he parties may agree and stipulate between themselves regarding treatment of confidential documents and information obtained during discovery that is not filed with the Commission. The parties may, but are not required to, file a courtesy copy of the agreement with the Commission.” Initial Order at 5. The proposed protective order represents the agreement and stipulation of the parties and is reasonable. 46 C.F.R. § 502.141(l). The parties have established good cause to enter the protective order, and so the joint motion is **GRANTED**. It is hereby **ORDERED** that the proposed Protective Order lodged with the joint motion is entered as an order in this case with the following modifications:

- Prior to filing any motion under paragraphs 7(e)(ii) or 13(b) of the Protective Order, the parties are **ORDERED** to jointly email me at judges@fmc.gov, providing a brief description of the dispute (less than 250 words). I will schedule a discovery conference and/or provide any supplemental instructions in the event a motion to compel is necessary. 46 C.F.R. § 502.141(i)(1). The parties are reminded that stipulations between counsel are not effective to change the timelines for completing discovery or for filing responses to motions. 46 C.F.R. § 502.141(l).

- The parties are hereby **ORDERED** that any confidential or attorney-eyes-only materials filed with the Commission pursuant to paragraph 8(c) of the Protective Order must comply with paragraphs 23-27 of the Initial Order. See Initial Order [Dkt. 9] at 5-6.

SO ORDERED.

ALEX
CHINTELLA



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ALEX CHINTELLA
Date: 2024.12.06
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Alex M. Chintella
Administrative Law Judge